

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20240930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND INC.

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant 20240930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹ (“Complainant” or “BBBY”), and Respondent MSC Mediterranean Shipping Company SA (“Respondent” or “MSC”) (BBBY, collectively with MSC, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 90-day extension of the remaining deadlines set forth in the Presiding Officer’s May 9, 2024 Scheduling Order:

I. The Current Schedule

1. On May 9, 2024, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

July 31, 2024	Substantial completion of documents and ESI pursuant to initial RFPs
August 30, 2024	Joint status report due describing status of discovery
September 30, 2024	Complete depositions of fact witnesses

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

September 30, 2024	Last day to serve interrogatories, requests for admission, and RFPs
October 31, 2024	Disclosure of initial expert reports, if any
November 22, 2024	Disclosure of rebuttal expert reports, if any
November 25, 2024	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
December 20, 2024	Complete expert depositions
December 20, 2024	Close of discovery
January 17, 2025	Complainant's initial brief, proposed findings of fact, and appendix
February 14, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
February 28, 2025	Complainant's reply brief and responses to proposed findings of fact

II. Good Cause Exists to Extend the Current Deadlines

A. Present Technical Delays and Large Discovery Volumes Contribute to the Need for Extended Timeframe

1. The Parties have been highly proactive regarding discovery in this matter and began negotiating the ESI Protocol (which has been filed in the matter), discussing custodians, and collecting documents while MSC's Partial Motion to Dismiss was still pending, rather than waiting for the filing of an answer to begin working on discovery matters. During that time, the Parties also drafted and negotiated the Protective Order filed in this matter.

2. As a part of its document and data collection process, BBY has collected more than 8.35 terabytes of data consisting of nearly 11 million documents from more than 20 custodians as well as network share drives and other sources of data. Based upon the search terms negotiated in the first instance in the ESI Protocol, Complainant's initial search for potentially responsive data from likely custodians has returned close to one million documents in addition to an additional significant set of documents stored as native files.

3. Complainant has been working closely with its e-discovery partner to expedite this process and has made significant progress. Indeed, the effort of extracting and migrating the nearly

one million documents based on the ESI Protocol's search terms, and experienced technical delays by Complainant's e-discovery vendor in extracting certain native files, took a number of weeks, and the documents only became fully available to counsel for Complainant on July 11, 2024. With the documents now available, these potentially responsive documents must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time.

4. MSC has collected data from 54 custodians, a search which has returned 10.25 Terabytes of data consisting of approximately 23,869,272 unique documents. MSC's search and review of this data has been ongoing and it has made two productions totaling 48,721 pages, consisting of 6,590 documents. To date, Complainant has made two document productions on July 9 and July 18, consisting of 11,702 pages and 141,777 pages, respectively.

5. The Parties have been diligent in managing and producing documents. As previously reported, the Parties have conferred to clarify and narrow discovery requests in order to achieve focused responses and productions. The Parties have also endeavored to avoid "data dumps," i.e., the production of documents which contain search terms from the ESI Protocol, but which are not substantively responsive. These efforts have involved greater scrutiny during the review process and accordingly require a greater expenditure of time.

6. As a part of the ongoing review and rolling productions process, Complainant and Respondent are working to review the substantial amount of remaining documents that were pulled in by each Party's ESI Protocol's terms, to isolate potentially overinclusive terms for further discussion, to remove non-responsive documents and data, and to continue to make rolling productions. Given the substantial volume of documents and the need for thorough review, an

extension of time is necessary to ensure that both parties can complete their discovery obligations effectively.

B. The Large Number of Depositions to Be Taken Makes Completion under the Current Schedule Impossible

7. The parties remain respectful of the deadlines set forth in the Scheduling Order, and to date have worked together diligently and collaboratively to structure (and agree on, to the extent possible at this early stage) both the overall scope and the particulars of fact discovery in this action. However, the complexity and size of this matter, combined with the challenges presented by delays in document collection and processing, have made it clear to the Parties that they will not be able to complete written discovery within the present deadlines, and consequently would not be able to adequately take depositions based upon a full factual record and further would not be able to present their claims and defenses adequately in their respective briefs or in any eventual trial in this action.

8. The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. The Parties have met and conferred multiple times regarding their respective objections and responses to these written discovery requests and have worked to limit the need for any discovery-related disputes to be brought before the Presiding Officer.

9. The Parties are aware of the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this joint Motion, the Parties here have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the

understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

10. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues arise related to the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties (including Complainant's former employees) or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the parties wish to note such possible issues for the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by Complainant against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where Complainant has raised similar legal claims as in the present action, the parties there anticipate approximately 30 total depositions.

11. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

12. As shown above, the Parties anticipate a significantly higher volume of documents than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.) Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas*

Container Line Limited and OOCL (Europe) Limited, Docket No. 23-02, where the parties there have been in active discovery since June 9, 2023 and anticipate being engaged in approximately 32 depositions through the end of August of 2024. Given the significant number of custodians in the present case, it is expected that the number of depositions conducted in this case will approximate those which will be taken in the *OOCL* proceeding. The schedule for taking depositions in the instant proceeding will also be interrupted by the intervening Thanksgiving and Christmas holidays, during which the availability of witnesses and counsel will be affected.

III. Conclusion

13. Given that the parties are still working diligently to review and produce documents from 79 custodians in preparation for what will likely be approximately thirty fact depositions, the Parties respectfully submit that an extension of the remaining deadlines in the May 9, 2024 Scheduling Order, which provides for the completion of depositions in 90 days, is necessary to allow the Parties a fair opportunity to produce documents, depose each other's respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

14. The Parties therefore jointly request the following amended schedule (moved 90 days from the original deadline in the Scheduling Order, accounting for weekends and holidays):

October 29, 2024	Substantial completion of documents and ESI pursuant to initial RFPs
December 3, 2024	Joint status report due describing status of discovery
January 30, 2025	Complete depositions of fact witnesses
January 30, 2025	Last day to serve interrogatories, requests for admission, and RFPs
February 28, 2025	Disclosure of initial expert reports, if any
March 20, 2025	Disclosure of rebuttal expert reports, if any
March 24, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony

April 21, 2025	Complete expert depositions
April 21, 2025	Close of discovery
May 19, 2025	Complainant's initial brief, proposed findings of fact, and appendix
June 16, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 30, 2025	Complainant's reply brief and responses to proposed findings of fact

15. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

16. WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: July 22, 2024

Respectfully submitted,

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